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Case Number: 25SMCV02850 Hearing Date: September 14, 2026 Dept: P

Tentative

Ruling

Mihee

Jang v. Andres Szita, et al., Case No. 25SMCV02850

Plaintiff's

Motion for Summary Judgment

Hearing

Date: September 14, 2026

Plaintiff

Mihee Jang sues Defendants Andres and Frederique Szita for breach of residential lease and unpaid rent for Defendants' use and occupancy of a residence at 13069 S. Icon Circle, Playa Vista, CA 90094. (Complaint, ¶ 6.)

Jang filed

the complaint on June 2, 2025. Defendants answered on September 8.

Jang filed

six Motions to Compel Responses to Plaintiff's request for production of documents, form interrogatories, and Request for Admission against Defendants Andres Szita and Frederique Szita on December 22, 2026. On March 19, 2026, the Court took the motions off calendar as moot and ordered Andres and Frederique Szita to pay Jang \$8,520.00 in sanctions.

On May 8,

2026, Plaintiff filed this Motion for Summary Judgment. On July 24, 2026, Defendants filed opposition. On August 3, 2026, Jang replied. On August 10, 2026, the Court issued a minute order asking Defendants to submit a code-compliant separate statement to complete their opposition to the motion. On August 20, 2026, Defendants submitted the separate statement.

Arguments

Jang

argues that there is no triable fact on her claim for breach of lease because the evidence shows that a lease contract existed between the parties, Jang performed the contract, and Defendants breached the lease by not paying \$249,250 in rent. (MSJ, p. 6.) Jang argues that Defendants' affirmative defenses that the property was uninhabitable, that Jang is not entitled to attorneys' fees because she did not mediate this matter, and that Jang failed to maintain the property in habitable condition are without merit because they are not supported by any evidence produced in discovery. (Id. at p. 7.)

In

opposition, Defendants argue that Jang's evidence lacks proper foundation and that there is a triable issue as to Defendant Frederique Szita's liability because she did not sign the August 4, 2022 Addendum. (Id. at p. 3.) Defendants also argue that the 2022 Addendum contains material inconsistencies that create ambiguity because they contradict prior lease addenda. (Ibid.) Defendants argue that Jang's alternative request for summary adjudication must be denied because she cannot summarily adjudicate liability alone. (Id. at p. 3.) Finally, Defendants argue that Jang's claim for attorneys' fees is barred by the lease's mediation clause. (Id. at p. 4.)

In reply,

Jang argues that Defendants' opposition is procedurally defective because they failed to file and serve their separate statement on plaintiffs. (Reply, p. 2.)

Jang argues that their supplemental declaration provides additional foundation for their exhibits, if the Court finds that the initial declaration lacked sufficient foundation. (Id. at p. 3.) Jang argues that the lease documents, even without a rent ledger, show that defendants owe \$249,250, and that this amount is also authenticated by Defendants' emails and that Frederique Szita did sign the addendum. (Id. at p. 4.) Finally, Jang argues that there is no evidence of habitability issues and that Defendants were never willing to mediate in good faith. (Id. at p. 5.)

Evidentiary

Objections

Jang makes

five objections to the Federique Szita declaration. All five objections are
OVERRULED.

Jang makes

four objections to the Andres Szita declaration. All four objections are
OVERRULED.

Defendants

object to Exhibit 5 of Jang's Book of Exhibits in their opposition memorandum of points and authorities. Defendants argue that exhibit 5 is inadmissible because the Jang declaration does not explain who prepared the ledger and what information was used. (Opposition, p. 2, referencing Jang Decl., ¶ 9.) In reply, Jang submitted the Hahn Declaration ISO Reply, which clarified that Andrew Hahn, a close friend of Jang's, prepared the ledger based on contemporaneous records of Defendants' payments. (Hahn Declaration ISO Reply, ¶ 3.) The supplemental declaration shows that Exhibit 5 would likely be admissible at trial, so the Court will consider it.

Motion

for Summary Judgment

Summary

judgment or adjudication is proper "if all the papers submitted show that there is no triable issue as to any material fact and that the moving party is entitled to judgment as a matter of law."

(Code Civ. Proc. §437c(c).) The

moving party bears the initial burden of production to make a prima facie showing that there are no triable issues of material fact. (Aguilar v. Atlantic Richfield Co. (2001) 25 Cal.4th 826, 850.)

On a

motion for summary judgment, the moving party's supporting documents are strictly construed and those of his opponent liberally construed and doubts as to the propriety of summary judgment should be resolved against granting the motion. (D'Amico v. Board of Medical

Examiners (1974) 11 Cal.3d 1, 21.) Once the moving party has discharged its burden as to a particular cause of action, however, the opposing party may defeat the motion by producing evidence showing that a triable issue of one or more material facts exists as to that cause of action.¿ (Id. at §437c(p)(2).)¿

"When

the motion for summary judgment is supported by affidavits sufficient to sustain the motion...the burden of showing that triable issues exist shifts to the party opposing the motion. [Citation.] A party cannot avoid summary judgment based on mere speculation and conjecture...but instead must produce admissible evidence raising a triable issue of fact. (Crouse v. Brobeck, Phleger & Harrison (1998) 67 Cal.App.4th 1509, 1524.)

Undisputed

Facts

On June

15, 2018, Defendants entered into a residential lease agreement ("Lease") with Jang to lease a single-family home located at 130969 S. Icon Circle, Playa Vista, CA for \$8,500 per month for one year. (Opposition Separate Statement ("OSS"), No.2.) On or about November 19, 2018, the parties agreed to a lease addendum ("Addendum 1") to extend the lease to June 30, 2020, for a monthly rent of \$9,000 beginning on July 1, 2019. (Id. at No. 3.) On May 27, 2021, Defendants agreed to a second addendum ("Addendum 2") to extend the lease to July 1, 2022. Addendum 2 included a repayment plan for \$75,250 in unpaid rent for the previous year. (Id. at p. 4.)

On August

4, 2022, Jang prepared a third Addendum ("Addendum 3") that would extend the lease for an additional year, to July 2023, and contained a repayment plan for the unpaid rent from 2020 and the 2021-2022 lease year. (Id. at No. 5.) Defendants dispute the validity of Addendum 3.

On or

about September 30, 2023, Defendants vacated the property. (Id. at No. 7.)

It is

disputed whether there were habitability issues while Defendants were tenants. Defendants also dispute the unpaid rent balance, but not the existence of a balance. (See Id. at No. 8.)

Discussion

Breach of Lease

An action

for breach of lease is an action for breach of contract. "The standard elements of a claim for breach of contract are: "(1) the contract, (2) plaintiff's performance or excuse for nonperformance, (3) defendant's breach, and (4) damage to plaintiff therefrom." (Wall Street Network, Ltd. v. New York Times Co. (2008) 164 Cal.App.4th 1171, 1178.)

a.

There

is a triable issue of fact as Frederique Szita's assent to Addendum 3.

It is

undisputed that Jang and Defendants agreed to the Lease, Addendum 1, and Addendum 2. (OSS, Nos. 2-4.)

Jang

submits evidence that Andres Szita signed Addendum 3 on August 4, 2022. (Jang Book of Exhibits, Exhibit 4.) This evidence is sufficient to establish a prima facie case that the contract was valid as between Jang and Andres Szita. (See Joseph E. Di Loreto, Inc. v. O'Neill (1991) 1 Cal.App.4th 149, 160 [finding that evidence of a signed employment agreement and a declaration from the employer stating that the parties entered into a contract constituted a prima facie case].) Therefore, Jang has met her burden of establishing that Addendum 3 was a valid contract with Andres Szita.

However,

Addendum 3 is not signed by Frederique Szita, unlike the first two addenda. Jang submits no other evidence showing that Frederique agreed to Addendum 3. In reply, Jang submits evidence showing that Andres Szita sent Addendum 3 to Jang's agent with a statement that Frederique Szita agreed to the addendum. However, this evidence does not show Frederique's assent, only that Andres believed that she assented. Where contract language shows that the parties contemplated that it would become effective only if each party has signed, there is no assent as to a party who did not sign. (Marcus & Millichap Real Estate Inv.

Brokerage Co. v. Hock Inv. Co. (1998) 68 Cal.App.4th 83, 92. Accord Romo v. Y-3 Holdings (2001) 87 Cal.App.4th 1153, 1159.) Jang does not meet her burden to show that Frederique Szita agreed to Addendum 3.

The burden shifts to Defendants to show a triable issue of fact as to the existence of a contract.

Defendants do not dispute that the Lease, Addendum 1, or Addendum 2 are binding contracts. Defendants argue that Andres Szita's agreement to Addendum 3 was invalid because he did not believe the account balance in the agreement was final when he signed it. Defendants submit a declaration to that effect, in which Andres Szita declares that "When I signed this document, it was my understanding that the monetary figures it contained were preliminary estimates subject to future, detailed accounting, which never occurred." (Andres Szita Decl., ¶ 4.) However, this evidence does not go to Andres Szita's assent to the agreement because the evidence does not show that his signature was not a manifestation of his agreement or that he did not believe that the written contract was an offer. (Donovan v. Rrl Corp. (2001) 26 Cal.4th 261, 270-271 ["The objective manifestation of the party's assent ordinarily controls, and the pertinent inquiry is whether the individual to whom the communication was made had reason to believe that it was intended as an offer."].) Rather, his evidence essentially contends that one of Addendum 3's terms would be subject to later modification. The objective evidence of Andres Szita's agreement to Addendum 3, his signature, controls.

Therefore, Defendants have not met their burden of showing a triable issue of fact as to Andres Szita's assent to Addendum 3.

b.
Plaintiff's performance or excuse for non-performance

Defendants do not dispute that Jang performed by renting them the property for the term of the agreements.

c.

Defendant's
breach

Defendants

also do not contest that they breached the agreement by failing to pay the rent they owed.

d.

Damages

Jang

claims damages under three contracts. First, she claims unpaid rent for the 2020 period, which would fall under Addendum 1, but is also mentioned in Addenda 2 and 3. Jang also claims unpaid rent for the July 1, 2021 through July 1, 2022 lease term under Addendum 2 and Addendum 3, and unpaid rent for the July 1, 2022 – July 1, 2023 lease term under Addendum 3. Jang claims \$75,250 of unpaid rent for 2020, \$54,000 in unpaid rent for 2021-2022, and \$120,000 in unpaid rent for 2022-2023.

Again,

Defendants do not contest the money owed under Addenda 1 or 2. Defendants raise two arguments against Jang's evidence of damages.

i.

Defendants'

argument that the terms of Addendum 3 place the amount of damages at issue in dispute fails because of the parol evidence rule.

Defendants

contend that Andres Szita believed at the time he signed the Addendum that the figures in Addendum 3 would later be modified, and that Plaintiffs' ultimate damages calculation is incorrect because the calculation is based on the numbers in Addendum 3 that should be modified by an accounting. Defendants submit the Andres Szita declaration, attesting that this was his understanding of Addendum 3, in support of this contention. (See Andres Szita Decl., ¶ 4 ["it was my understanding that the monetary figures it contained were preliminary estimates subject to future, detailed accounting, which never occurred."].) However, this evidence is inadmissible because it contradicts the express meaning of the terms set forth in Addendum 3. "[The parol evidence rule] is founded on the

principle that when the parties put all the terms of their agreement in writing, the writing itself becomes the agreement. The written terms supersede statements made during the negotiations. Extrinsic evidence of the agreement's terms is thus irrelevant, and cannot be relied upon. [citation] "[T]he parol evidence rule, unlike the statute of frauds, does not merely serve an evidentiary purpose; it determines the enforceable and incontrovertible terms of an integrated written agreement." [citation] The purpose of the rule is to ensure that the parties' final understanding, deliberately expressed in writing, is not subject to change. [citation]." (Riverisland Cold Storage, Inc. v. Frenso-Madera Production Credit Assn. (2013) 55 Cal.4th 1169, 319, internal citations omitted.)

Addendum 3

is a final, integrated contract because it is an amendment expressly incorporated into the Lease, which contains an integration clause. (Jang Book of Exhibits, Exhibit 1, ¶ 46; see also Exhibit 4, ["The following terms and conditions are hereby incorporated into and made a part of the: Residential Lease"].) Jang's supplemental evidence also confirms that Addendum 3 was the final product of email negotiations between Andres Szita and Jang's agent Andrew Hahn. (Hahn Decl., ¶¶ 4-6, Exhibits 18-20.)

Defendants

also contend that there is a triable issue as to the amount of unpaid rent because Addendum 3 contains a mathematical error. Addendum 3 states that the July 2021-July 2022 lease term's value is \$120,000, when it should have said \$108,000. (Andres Szita Decl., ¶ 5.) Though this does appear to be an error in Addendum 3, it is irrelevant to the damages calculation because the outstanding rent for that period is not calculated based on that number. Addendum 3 states that the rent owed for the 2021-2022 period is \$54,000, which is consistent with the total rent due under Addendum 2, \$108,000, minus Defendants' single \$54,000 payment in June 2022. (Plaintiff's Book of Exhibits, Exhibits 4-5.)

ii.

Defendants'

habitability evidence shows a triable issue as to the amount of rent owed.

Defendants

assert that there were habitability issues at the property. Civil Code § 1941 states that "[t]he lessor of a building intended for the occupation of human beings must, in the absence of an agreement to the contrary, put it into a

condition fit for such occupation, and repair all subsequent dilapidations thereof, which render it untenable.” Civil Code § 1941.1(a) lists the “affirmative standard characteristics” that if a dwelling is substantially lacking will cause it to be deemed untenable. (Civ. Code § 1941.1(a)(1)-(9).)

A tenant

can reasonably expect that the landlord will maintain the property in a habitable condition by repairing promptly any conditions, of which the landlord has actual or constructive notice, that arise during the tenancy. (Peterson v. Superior Court (1995) 10 Cal.4th 1185, 1205-26.) However, a tenant cannot reasonably expect that the landlord will eliminate defects in a rented dwelling of which the landlord was unaware and which could not have been disclosed by reasonable inspection. (Id.) Thus, the landlord’s actual or constructive notice of the alleged uninhabitable condition is an essential prerequisite to an actionable breach of habitability claim. (Id.)

Defendants

submit evidence that they told Jang of habitability issues in 2022. Frederique Szita observed water damage and mold caused by a persistent leak. (Frederique Szita Decl., ¶ 7.) Andres Szita also attests to repeated and recurring plumbing issues including a persistent leak that caused the aforementioned water damage and mold growth. (Andres Szita Decl., ¶ 7.) He also submits evidence that the HVAC system did not function properly during the summer of 2022. (Id. at ¶ 8.) Importantly, Andres Szita states that they repeatedly notified Jang’s agent and requested repairs. (Id. at ¶¶ 7-8.)

In reply,

Jang argues that Defendants’ evidence of habitability issues is not credible. On a motion for summary judgment, the Court does not weigh the evidence submitted. Defendants’ evidence is sufficient to show a triable issue on their habitability concerns.

Any

finding of breaches of the implied warranty of habitability would reduce the rent owed. Thus, this affirmative defense creates a disputed issue of fact as to the amount of damages Jang is entitled to.

Conclusion

A

plaintiff cannot obtain summary adjudication on liability on a single breach of contract claim. (Paramount Petroleum Corp. v. Superior Court (2014) 227 Cal.App.4th 226, 238-239.) Even though there are no triable issues as to the existence of a contract between Jang and Andres Szita, damages and Frederique Szita's assent are in dispute.

Plaintiff's

Motion for Summary Judgment is DENIED.